

BEFORE THE FEDERAL MARITIME COMMISSION

DOCKET NO. 25-08

FORMUKLEEN, INC.,

Complainants

v.

TOP SHIPPING SYSTEMS, CORP.,

Respondent.

RESPONDENT’S MOTION FOR EXTENSION OF TIME

Respondent, Top Shipping Systems, Corp. (“Respondent”), by and through its undersigned counsel, hereby respectfully moves for an extension of time to comply with the Administrative Law Judge’s Order served April 1, 2026, and states:

1. On April 1, 2026, the Court entered an Order requiring Respondent to, among other things:
 - a) supplement responses to Requests for Production Nos. 4 and 7 and Interrogatory No. 1; and
 - b) submit a sworn declaration regarding document storage, retention systems, and search efforts, on or before April 15, 2026.
2. It is noted that the Order contemplates the gathering, review and production of all records for every shipment handled by Respondent for Complainant.

3. The undersigned was retained only this morning.¹ However, the undersigned has already discussed the production with Respondent, who has begun to gather the requested documents.
4. That being said, as new counsel, the undersigned respectfully submits that it requires additional time to review the procedural history and filings in this case, review the document production and interrogatory responses and ensure that Respondent's supplemental responses and sworn declaration are complete, accurate, and compliant with the Court's Order.
5. For this reason, Respondent respectfully requests that the deadline to respond to the Order be extended to April 29, 2026.
6. This request is made in good faith and not for purposes of delay.
7. No party will be prejudiced by the requested extension.

CERTIFICATION OF CONFERENCE

The undersigned hereby certifies that he has conferred in good faith with Sara Dandan, the representative of Complainant in an effort to resolve this matter before filing the instant motion. Specifically, the undersigned called Ms. Dandan immediately after being retained to both introduce myself and to get consent for the relief requested. Before the first sentence was finished, however, Ms. Dandan laughed out loud before stating "absolutely not. Our position is that you have had plenty of time to respond and this is just another delay tactic." The undersigned expected professional courtesy. It is noted that, even though Ms. Dandan is not an attorney, she is nevertheless bound by the Rules of Professional Conduct as observed by the Commission.

¹ The undersigned shall file notices of appearance contemporaneously with the instant filing. A substitution of counsel has been circulated and shall be filed immediately after all signatures have been obtained. In the utmost good faith, however, Respondent did not want to delay the filing of this motion.

Specifically, as set forth in 46 C.F.R. § 502.27(c), “The Commission may deny admission to, suspend, or prohibit any person from practice before the Commission who it finds does not possess the requisite qualifications to represent others or is lacking in character, integrity, or proper professional conduct.”

Dated: April 10, 2026.
Miami, Florida

Respectfully submitted,

SPECTOR RUBIN, P.A.

By: /s/ Robert Borak
Andrew R. Spector, Esq.
Florida Bar. No. 634093
Robert M. Borak, Esq.
Florida Bar. No. 15923
3250 Mary Street, Ste. 405
Miami, Florida 33133
Telephone: (305) 537- 2000
Facsimile: (305) 537- 2001
robert.borak@spectorrubin.com
andrew.spector@spectorrubin.com
Attorneys for Respondent

CERTIFICATE OF SERVICE

I hereby certify that on this 10th day of April, 2026, I have served the aforementioned document to all parties of record in this proceeding via electronic mail. A copy has been sent to each individual in a timely manner to ensure it reaches them on the date the document is required to be filed with the Commission.

By: /s/ Robert Borak
Robert M. Borak, Esq.
Attorneys for Respondent